



UNITED STATES ENVIRONMENTAL PROTECTION AGENCY
REGION IX
75 Hawthorne Street
San Francisco, CA 94105

In Re:

CITY OF SAN DIEGO'S POINT LOMA
WASTEWATER TREATMENT PLANT,
APPLICATION FOR A MODIFIED NPDES PERMIT
UNDER SECTIONS 301(h) AND (j)(5)
OF THE CLEAN WATER ACT

FINAL DECISION OF THE
REGIONAL ADMINISTRATOR
PURSUANT TO 40 CFR PART
125, SUBPART G

It is my final decision to grant the request by the City of San Diego for renewal of a National Pollutant Discharge Elimination System (NPDES) permit modified under Sections 301(h) and (j)(5) of the Clean Water Act. The basis for this decision is described in the 301(h)-modified permit fact sheet for the E.W. Blom Point Loma Metropolitan Wastewater Treatment Plant and Ocean Outfall and the Tentative Decision Document issued by USEPA on October 28, 2016.

The USEPA received the City of San Diego's renewal application on January 15, 2015. A tentative decision to approve the application was provided during the public notice process starting on October 28, 2016. Concurrently, USEPA and the San Diego Regional Water Quality Control Board jointly proposed issuance of the draft 301(h)-modified NPDES permit incorporating both federal NPDES and State Waste Discharge Requirements on October 28, 2016. A joint public hearing on the 301(h) tentative decision and draft permit was held on December 14, 2016 at which time oral and written testimony were presented by the public. USEPA and the Regional Water Board revised the draft permit, based in part on public comments provided in December 2016. The USEPA and San Diego Regional Water Quality Control Board jointly issued a revised tentative 301(h)-modified NPDES permit on February 10, 2017. A public hearing on the revised tentative permit was held by the Regional Board on April 12, 2017 at which time oral and written testimony were presented by the public. The Regional Water Quality Control Board adopted the 301(h)-modified permit incorporating State Waste Discharge Requirements on April 12, 2017.

The final NPDES 301(h)-modified permit will become effective on October 1, 2017 unless a request for review is filed before the permit effective date. Persons filing a request for review must have filed comments on the 301(h) tentative decision and draft permit, or participated in the two public hearings, except as provided in 40 CFR 124.19.

This final decision is issued without prejudice to the rights of any party to address the legal issue of the applicability of 33 U.S.C. section 1311(j)(5) to the City's future NPDES permits.

Dated: 4 August 2017

A handwritten signature in blue ink, appearing to read "Alexis Strauss", is written over a horizontal line.

Alexis Strauss
Acting Regional Administrator